

Allauddin v. Electricity Distribution Division

High Court of Judicature at Allahabad · Division Bench · 14 September 2018 · Writ-C No. 31201 of 2018 · **Writ disposed; petitioner relegated to clause 6.16 complaint.**

HEADNOTE

A consumer who disputes an electricity bill as incorrect or excessive has a statutory complaint under clause 6.16 of the U.P. Electricity Supply Code before the Executive Engineer (R). The Division Bench declined to examine the 25 June 2018 bill on merits and disposed of the writ with liberty to raise the grievance under that clause within two weeks, directing the Executive Engineer to decide any such complaint on merits within six weeks.

FACTUAL SUMMARY

Allauddin filed Writ-C No. 31201 of 2018 in the Allahabad High Court against Electricity Distribution Division, challenging an electricity bill dated 25 June 2018. He contended that the bill was incorrect and showed an excess amount. Counsel for the petitioner and for the respondents were heard. The dispute was a consumer billing grievance against the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.16

billing-dispute-statutory-complaint

HOLDING

A writ challenging an electricity bill as incorrect or excessive is not decided on merits where clause 6.16 supplies a complaint to the Executive Engineer (R); the petition is disposed of with liberty to file that complaint, and the Executive Engineer is to decide it on merits in accordance with law within the time fixed. ¶ 1

FLAG Order cites clause 6.16 of the U.P. Electricity Supply Code, 2002; the catalogued provision is UP-2005::6.16.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 25 JUNE 2018 WAS INCORRECT OR SHOWED AN EXCESS AMOUNT

¶ 1